

Data Protection Policy for Arshan UG

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1. Purpose

This Data Protection Policy ("Policy") outlines how Arshan UG ("we," "us," or "our"), operating the JSE Ai web application, collects, processes, stores, and protects personal data in compliance with the General Data Protection Regulation (GDPR) and German data protection laws (BDSG). This Policy applies to all employees, contractors, and third-party processors handling data for JSE Ai.

2. Scope

This Policy covers all personal data processed by Arshan UG, including:

- Personal information (e.g., name, email, address).
- Payment details (processed via Stripe).
- User-generated content (e.g., AI-generated CVs and cover letters edited and saved by users).
- Experience and professional details (e.g., work experience, skills, education).
- Usage data (e.g., IP addresses, browser types).

This Policy applies to data collected through the Service and shared with universities where users have studied or third-party providers (e.g., OpenAI, Stripe).

3. Data Controller Details

- **Company:** Arshan UG
- **Address:** Kolonnenstr. 8, 10827 Berlin, Germany
- **Email:** Info@arshan.digital
- **Data Protection Officer (DPO):** To be appointed; contact via Info@arshan.digital

4. Principles of Data Processing

We adhere to the following GDPR principles (Art. 5):

- **Lawfulness, Fairness, and Transparency:** Data is processed legally, fairly, and with clear communication to users.
- **Purpose Limitation:** Data is collected for specific, explicit, and legitimate purposes (e.g., providing the Service, processing payments, sharing with universities with consent).

- **Data Minimization:** Only data necessary for the intended purpose is collected.
- **Accuracy:** Data, including experience and professional details, is kept accurate and updated as needed.
- **Storage Limitation:** Data is retained only as long as necessary (e.g., duration of subscription plus 6 months, unless legal requirements dictate otherwise).
- **Integrity and Confidentiality:** Data is protected using appropriate technical and organizational measures.
- **Accountability:** We maintain records of processing activities and ensure compliance.

5. Data Collection and Processing

5.1 Types of Data

- **Personal Information:** Collected during account creation for user identification and communication.
- **Payment Details:** Handled by Stripe for subscription processing; we do not store full payment data.
- **User-Generated Content:** CVs and cover letters generated by OpenAI and edited/saved by users.
- **Experience and Professional Details:** Work experience, skills, education, and other professional background provided to enhance job application automation.
- **Usage Data:** Automatically collected to improve the Service.

5.2 Legal Basis

- **Consent:** For sharing data with universities where users have studied, obtained via a non-pre-ticked opt-in checkbox during signup.
- **Contract:** For processing data necessary to provide the Service and process payments.
- **Legal Obligation:** For complying with German and EU laws (e.g., tax records).

6. Data Sharing and Third-Party Processors

- **Partnered Universities:** Data (e.g., personal information, CVs, cover letters, experience and professional details) may be shared with the university where a user has studied if they are currently enrolled or have graduated within the last 6 months, and if they provide explicit consent during signup. Withdrawal of consent must be honored promptly.
- **Third-Party Providers:**

- **OpenAI:** Processes data for AI generation of CVs and cover letters.
- **Stripe:** Handles payment processing.

All processors must sign GDPR-compliant Data Processing Agreements (DPAs).

- **Legal Disclosure:** Data may be shared if required by law or to protect our rights.

7. Data Security Measures

We implement the following security measures:

- Encryption of data in transit (e.g., SSL/TLS) and at rest.
- Access controls limiting data access to authorized personnel.
- Regular security assessments and updates.
- Firewalls and backup protocols.

Data is stored on servers within the European Economic Area (EEA), with exceptions for OpenAI and Stripe, where Standard Contractual Clauses ensure GDPR compliance for transfers outside the EEA.

8. Data Retention

Data is retained for the duration of the users subscription plus a reasonable period (e.g., 6 months after account closure) to comply with legal or operational needs, unless users request deletion. Anonymized data may be kept indefinitely for analytics.

9. User Rights

Users have the following GDPR rights, which we must facilitate:

- **Access:** Provide data copies upon request.
- **Rectification:** Correct inaccurate data, including experience and professional details.
- **Erasure:** Delete data upon request, subject to legal retention.
- **Restriction:** Limit processing if accuracy is contested.
- **Data Portability:** Supply data in a structured format.
- **Objection:** Allow objections to processing.
- **Withdraw Consent:** Honor withdrawal of university data-sharing consent.

Requests must be processed within one month, with extensions possible under GDPR.

10. Breach Notification

In case of a data breach, we will:

- Assess the risk to individuals rights and freedoms.
- Notify the Berlin Commissioner for Data Protection and Freedom of Information within 72 hours if the breach poses a high risk.
- Inform affected users without undue delay if required.

11. Training and Awareness

All employees and contractors must receive annual GDPR training on data protection practices. The DPO will oversee compliance and conduct regular audits.

12. Policy Review and Updates

This Policy will be reviewed annually or when legal requirements change. Updates will be documented, and staff will be trained on revisions. The latest version is available internally and linked in user-facing documents.

13. Contact Information

For data protection queries, contact:

- **Data Protection Officer:** To be appointed
- **Email:** Info@arshan.digital
- **Address:** Kolonnenstr. 8, 10827 Berlin, Germany